



Department for
Science, Innovation
& Technology

Department for Science, Innovation and Technology
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Anthony Littlewood

Our reference:

IR2026/02006

antlonghurst@gmail.com

16 June 2026

Our response to your freedom of information request

Dear Anthony Littlewood,

You requested an internal review of our handling of your information request, which we received on 9 June 2026.

This internal review is specific to your information request. We have reviewed the response which we sent to you on 9 June 2026 to see if we have met the requirements of the Freedom of Information Act (FOIA) or the Environmental Information Regulations (EIR). This is separate from any other complaints processes you might be engaged in with us. This internal review has been completed by a caseworker who was not involved in preparing our original response.

Your concerns

Dear FOI Team,

I would like to request an internal review of the response to FOI2026/01543.

I acknowledge that section 35(1)(a) may be engaged in relation to ministerial submissions concerning the formulation and development of government policy.

However, I am not persuaded that the public interest test has been correctly applied or that withholding the document in full is necessary.

In particular, I would be grateful if the review could consider:

1. Whether any part of the document can reasonably be disclosed, including factual material, summaries, descriptions of alternatives considered, or other information that does not reveal free and frank policy advice.
2. Whether sufficient weight was given to the public interest in understanding how necessity and proportionality were assessed in relation to measures affecting privacy, freedom of expression, age assurance, and children's access to online services.
3. Whether sufficient weight was given to the public interest in understanding whether less intrusive alternatives, including enforcement of existing UK GDPR, PECR, consumer protection, and advertising laws, were considered during policy development.
4. Whether the passage of time since the relevant policy development reduces the weight that should be attached to maintaining a protected policy-making space.

The response confirms that the identified ministerial submission addresses policy development concerning the necessity and proportionality of the measures in question. Given the significant public interest in these issues, I believe there is a strong case for reconsidering whether partial disclosure or the release of additional information is possible.

I would therefore be grateful if the decision to withhold the document in full could be reviewed.

Our decision

Our original response met the requirements of FOIA and the decision is upheld. The review did not find any material shortcomings in the handling of your request. In particular, the exemptions applied in our response were appropriate and justified, and sufficient weight was given to the public interest test.

The only information we hold in scope is a ministerial submission document, which is in relation to the Online Safety Bill and covers age of access to social media. As this is a live policy issue with ongoing discussions, the information continues to be fully withheld under section 35 (formulation of government policy) of the act.

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Our internal review reconsidered whether our original response met the requirements of FOIA and followed relevant ICO guidance. Where applicable we have checked that, when preparing our original response, we:

- **Complied with statutory timeframes**, notably responding within 20 working days as required by section 10 of FOIA (or, if applicable, informed you and applied a permissible extension or pause, for instance to consider the public interest test).
- **Applied any FOIA exemptions correctly**, making sure that each exemption cited in our response was valid and appropriate to the information in question, and that we undertook a proper public interest test for any qualified exemption (i.e. those requiring a public interest balancing).
- **Conducted a proper public interest test** (where we relied on a qualified exemption that required balancing public interests). This means we weighed the public interest in disclosing the information against the interest in maintaining the exemption, and we confirmed that the outcome of that test justified withholding the information, as required by FOIA for qualified exemptions.
- **Issued a proper refusal notice** (if information was withheld) that explained the decision in full. In our original response, we cited the relevant FOIA exemption section(s) and, where relevant, the factors considered in the public interest test, and we notified you of your rights to seek an internal review and to complain to the Information Commissioner's Office, as required by FOIA section 17.
- **Communicated the information in a suitable format**. We have checked that the information we sent was accessible and in the format you requested (if a preference was expressed), and that any redactions were limited only to exempt information.

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Next steps

We hope this internal review has resolved your concerns. If you still feel that we have not responded appropriately to your information request, you can complain to the Information Commissioner's Office (ICO).

You should make complaints to the ICO within six weeks of receiving the outcome of an internal review through the ICO website: www.ico.org.uk/foicomplaints.

Your information

Our privacy notice explains what we do with the personal information which you provide to us. Our personal information charter sets out the standards you can expect from the Department for Science, Innovation and Technology when we collect, hold or use your personal information.

Yours sincerely,

Department for Science, Innovation and Technology